

A
M E A S U R E

PASSED BY

The National Assembly of the Church of England

To amend the law for the enforcement of Church
discipline in the case of incumbents.

[18th February 1947.]

1. For the purposes of this Measure—

Definitions.

- (1) the expression "benefice" comprehends all rectories with cure of souls vicarages perpetual curacies endowed public chapels and parochial chapelries and chapelries or districts belonging or reputed to belong or annexed or reputed to be annexed to any church or chapel and districts formed for ecclesiastical purposes by virtue of statutory authority and includes benefices in the patronage of the Crown or of the Duchy of Cornwall but does not extend to any of His Majesty's Royal Chapels or to any Royal peculiar nor to any cathedral or capitular preferment or dignity nor to any chapel belonging to any college school hospital inn of court asylum or public or charitable institution nor to any private chapel ;
- (2) the expression "bishop" means the bishop of the diocese in which the benefice concerned is situate ;
- (3) the expression "incumbent" includes in relation to a benefice a rector with cure of souls, vicar, perpetual curate, curate in charge or minister ;
- (4) the expression "Ministerial Committee" means the Ministerial Committee constituted under the Incumbents (Disability) Measure 1945 ;
- (5) the expression "patron" in relation to any benefice means the person or persons who would for the time being be entitled otherwise than by lapse, to present or collate to that benefice, if it were then vacant, and includes—

8 & 9 Geo. 6.
No. 3.

- (i) in any case where the right to present or collate is vested in different persons jointly, every person

whose concurrence would be required for the exercise of the joint right ; and

(ii) in any case where the patronage is vested in different persons by way of alternate or successive rights of presentation or collation, every person who would be entitled to present or collate on the next, or any successive turn.

- (6) the expression " prescribed " means prescribed by rules made in pursuance of this Measure ;

PART I.

GENERAL PROVISIONS.

Subject
matter of
proceedings.

55 & 56 Vict.
c. 32.

2. Proceedings may be instituted under this Measure against the incumbent of any benefice in respect of conduct unbecoming the character of a clerk in Holy Orders or of serious, persistent or continuous neglect of duty, whether or not cognisable under the Clergy Discipline Act, 1892, or any other Act or Measure ; but not

- (i) in respect of any act or omission which took place more than three years before the complaint in writing made under section four of this Measure ; nor
- (ii) in respect of any question of doctrine, ritual or ceremonial, or of the social or political opinions of the incumbent.

Persons
qualified to
take
proceedings.

3. Any of the following persons shall be qualified to institute proceedings against an incumbent under this Measure :—

- (i) any person appointed for the purpose on each occasion by the bishop ;
- (ii) a churchwarden of any parish in which the incumbent has the cure of souls ;
- (iii) the patron of any benefice held by the incumbent ;
- (iv) any three communicant members of the Church of England of twenty-one years of age and upwards on the electoral roll of any parish in which the incumbent has the cure of souls.

Preliminary
consideration
by bishop.

4.—(1) Any qualified person desirous of instituting proceedings under this Measure shall in the first instance make a complaint in writing to the bishop, who shall then consider whether he can deal with it satisfactorily without recourse to proceedings under this Measure.

(2) If after giving the incumbent an opportunity of discussing the complaint with him the bishop is of the opinion that the matter should be considered by the Ministerial Committee he may refer the complaint to that Committee and shall inform

the incumbent of the names of its ordinary and reserve members, and if the incumbent within seven days shall state to the bishop in writing any objection to one or more members, the bishop may, if he approve the reasons for such objection, disqualify such member or members from serving on that occasion.

5.—(1) If a complaint be referred by the bishop to the Ministerial Committee, they shall consider the same and shall invite the incumbent concerned and the complainant to confer with them, either separately or together, and after such conference or after there has been a reasonable opportunity for such conference, the Ministerial Committee shall in writing either—

- (i) inform the bishop, the complainant and the incumbent that in their opinion there is nothing in the complaint which would justify further proceedings; or
- (ii) request the complainant to specify his charges in the prescribed manner for trial by a Special Court constituted in manner laid down by the Schedule hereto and notify the incumbent that such request has been made.

(2) Either the incumbent or the complainant may, if he so desires, be assisted or represented by a friend or adviser at any meeting of the Ministerial Committee at which he is invited to be present.

(3) Every meeting of the Ministerial Committee under this Measure shall be held outside the parish of the incumbent concerned.

6.—(1) If the complainant at the request of the Ministerial Committee shall within one month specify his charges in the prescribed manner the Committee shall consider the same and shall if in their opinion any of the charges should be tried by a Special Court, send a copy thereof to the bishop with a recommendation that the charges be so dealt with.

Provided that the Ministerial Committee shall not recommend that any charge be tried by such Special Court unless at least four members of the Committee shall have voted in favour of such recommendation.

(2) Copies of the report made to the bishop shall be sent by the Ministerial Committee to the incumbent and to the complainant at the same time as the report is sent to the bishop.

7.—(1) Within fifteen days after receiving the report of the Ministerial Committee, or within such extended period as the bishop may allow, the incumbent shall deliver to the bishop his answer to the charges in the prescribed manner.

Ministerial Committee to investigate complaint.

Report of Ministerial Committee.

Incumbent's reply to charges and notice by bishop of intention to proceed.

(2) At any time within fifteen days after the expiration of the period allowed to the incumbent for replying to the charges the bishop may give to the complainant and to the incumbent notice of his intention to refer the charges to a Special Court constituted in accordance with the provisions of the Schedule hereto.

Personal
investigation
by bishop.

8.—(1) At any time before the expiration of fifteen days from the date of service of the notice required by subsection (2) of the last preceding section the incumbent may in writing request the bishop himself to deal with the charges, and, after consultation with the complainant, the bishop, if willing himself to deal with the charges, shall not constitute a Special Court, but after giving the complainant and the incumbent an opportunity of conferring with him separately or together and after considering the charges in person shall decide whether any of them has been admitted or proved.

(2) In a case in which charges are dealt with by the bishop in person under this section—

- (i) the proceedings shall be private and informal, and shall be conducted in such manner as the bishop may think fit ;
- (ii) if the bishop shall decide that any of the charges are established, he may exercise any of the powers given to him by section ten of this Measure ;
- (iii) there shall be no appeal against any decision by the bishop nor against any exercise of his powers under section ten of this Measure in consequence of such decision ;
- (iv) the bishop shall give public notice in such manner as he thinks fit both of his decision and of the manner in which he intends to exercise his powers under section ten of this Measure.

(3) In any other case, the charges shall be referred by the bishop to a Special Court constituted in accordance with the Schedule of this Measure, and in that event the bishop shall authorise the complainant or with the consent of the complainant any other person or persons to conduct the proceedings as promoter.

Proceedings
of Special
Court.

9.—(1) The bishop shall give not less than fifteen days' notice to the promoter and the incumbent of the time and place at which he shall have directed a Special Court to meet for the hearing of the charges.

(2) The Special Court shall inquire into and report to the bishop upon the charges made by the promoter.

(3) A Special Court shall have the same powers of administering oaths and of requiring the production of documents as are exercisable by the High Court of Justice.

(4) The proceedings of a Special Court shall be public except that—

(i) the Court may of its own motion or at the request of either party, direct that any of the evidence shall be heard in private, and

(ii) at the request of both parties, the whole of the proceedings may, if the Court so direct, be held in private.

(5) The decision of the Court shall be that of the majority of its members, and shall be delivered by the president of the Court. It shall state what charges, if any, have been admitted by or proved against the incumbent, and the opinion of the Court as to the gravity or otherwise of any charges admitted or proved. Copies of the report shall be sent at the same time to the incumbent and to the promoter.

(6) The Court shall have power at any stage of the proceedings to order the promoter to give security for costs.

(7) After trial of the charges the Court shall have power at its discretion to make an order for payment of costs against either party and such costs shall be recoverable in the prescribed manner.

(8) Any interlocutory application may be dealt with by the president of the Court sitting alone.

(9) Subject to the foregoing provisions of this section the procedure of a Special Court shall be regulated by rules made under section fourteen of this Measure.

10.—(1) If the bishop, acting under section eight of this Measure, decide or the Special Court report that any charge brought against the incumbent has been proved, the bishop shall have the following powers (in this Measure referred to as "the bishop's powers"), and such powers shall, subject to the provisions of this Measure, be exercisable by him in his discretion, that is to say :—

Powers of
bishop.

(i) Power to pronounce censure upon the incumbent ;

(ii) Power within six months after the receipt of the report of the Special Court or, if an appeal be filed, after receipt of notice of the withdrawal or determination thereof, to inhibit the incumbent from discharging all or any of the duties of any benefice held by the incumbent for a period not exceeding three years ;

- (iii) Power, with the concurrence of at least five members of the Ministerial Committee, either immediately or at any time during the continuance of an inhibition to declare any benefice held by the incumbent vacant for all purposes ;

(2) The bishop shall cause a copy of every inhibition issued by him and of every declaration declaring a benefice vacant made by him under this section to be filed forthwith in the diocesan registry.

Notice of
intention to
exercise
bishop's
powers.

11. Within fourteen days after the bishop shall have received the report of the Special Court, the bishop shall give public notice in such manner as he thinks fit, of the manner in which he intends to exercise the bishop's powers and shall give notice of the same in writing to the incumbent and to the promoter but shall not exercise any of the same until the expiration of a period of twenty-eight days calculated from the day on which he has given such notice ; or if an appeal has been entered under section twelve of this Measure until such appeal has been withdrawn or determined.

Appeals.

12.—(1) At any time within twenty-one days after notice has been given by the bishop of the manner in which he intends to exercise his powers under this Measure the incumbent may appeal in the prescribed manner against any decision of a Special Court or, subject to the provisions of paragraph (iii) of sub-section (2) of section eight of this Measure, against the exercise of the bishop's powers in the manner of which he has given notice, to an Ecclesiastical Court of the Province (in and for the purposes of this Measure only called the Provincial Court) constituted in accordance with Canons passed respectively by the Convocations of the Provinces of Canterbury and York and duly promulged, and the bishop shall not in the case under appeal exercise the bishop's powers until the appeal has been withdrawn or determined.

(2) The appeal to the Provincial Court shall be final.

(3) Either party to a case under this Measure may at any time within twenty-one days appeal to the Provincial Court against any order or judgment of a Special Court in respect of any matter of law.

(4) No appeal against any interlocutory order or judgment under this Measure on a matter of procedure only shall be allowed except by leave of the Special Court.

Procedure on
Appeal.

13.—(1) An appeal in the Provincial Court shall be heard on the note of the case taken by the president of the Special Court or by his direction, or on such other note of the case as

the Provincial Court may allow : Provided that the Provincial Court may—

- (i) summon any witness heard at the trial to give evidence with respect to the case ; and
- (ii) allow any new evidence with respect to the case.

(2) The Provincial Court may confirm, vary or annul the decision of the Special Court and may confirm, vary or annul the decision of which the bishop has given notice under section eleven of this Measure, as to the manner in which he intends to exercise the bishop's powers, and the bishop shall then exercise his powers accordingly.

(3) The Provincial Court may, at its discretion, make an order for costs against either party, and such costs shall be recoverable in the same manner as costs in a Special Court.

(4) Subject to the foregoing provisions of this section the procedure of the Provincial Courts shall be regulated by rules made in accordance with the provisions of section fourteen of this Measure.

14.—(1) Subject to the provisions of this Measure a Rule Committee appointed by the Church Assembly may make rules for carrying this Measure into effect and for all matters not otherwise provided for incidental to or connected with the administration of justice under this Measure and in particular for regulating—

- (i) the procedure of Special Courts constituted under this Measure in all matters for which provision is not made in this Measure including a change of promoter ;
- (ii) the appointment and duties of officers of Special Courts ;
- (iii) matters relating to costs, fees and expenses in respect of proceedings under this Measure ;
- (iv) the time within which any act required or permitted to be performed by this Measure is to be performed ;
- (v) the remuneration of the officers of Special Courts and the expenses of those Courts ;
- (vi) the fees of the diocesan registrar in respect of duties imposed on him by this Measure or by any rule made thereunder ;

(2) Every rule purporting to be made in pursuance of this section shall be laid before the Church Assembly at its next session and shall not come into operation until it shall have been approved by the Church Assembly.

(3) Every rule purporting to be made in pursuance of this section shall forthwith be laid before both Houses of Parliament,

and if an Address be presented to His Majesty the King by either House within the next twenty days thereafter on which that House has sat praying that any such rule may be annulled, His Majesty in Council may annul the same, without prejudice to the validity of anything done in the meantime in pursuance thereof, but subject as aforesaid every such rule shall while unrevoked be of the same validity as if contained in this Measure.

PART II.

PROVISIONS CONSEQUENTIAL ON INHIBITION.

Discharge of
the duties of
the benefice
and payment
therefor.

15. If the bishop, acting in accordance with section ten of this Measure, shall have inhibited an incumbent, he shall have power during the period of such inhibition to appoint and license a curate or curates, and to make temporary provision for the discharge of the duties of the benefice with, in each case, remuneration paid in accordance with the provisions of Part II of the Incumbents (Disability) Measure 1945, and such provisions shall apply to such case as if references therein to that Measure were references to this Measure.

Application
of benefice
income.

16. In any case in which an incumbent is inhibited under this Measure from discharging all or any of the duties attaching to his benefice :—

- (i) the bishop shall sequester the profits of the benefice which shall be applied under such sequestration for the purposes for which the same shall for the time being be applicable either under the provisions of this Measure or otherwise ;
- (ii) sequestrators appointed under the provisions of the last preceding paragraph of this section shall during any inhibition render half yearly accounts to the bishop and shall send a copy thereof to the incumbent ;
- (iii) any part of the income of any benefice which the incumbent thereof is under this Measure disqualified from receiving shall, after the payment of any curate or curates appointed by the bishop, and of any other expenses necessarily incurred, be added to the endowment capital of the benefice concerned.

Restrictions
on incumbent.

17. In any case in which an incumbent is inhibited under this Measure from discharging all or any of the duties attaching to his benefice :—

- (i) he shall not interfere with any curate in the discharge of any of the said duties :—
- (ii) he shall not reside in or occupy any parsonage house belonging to the benefice :—

Provided that—

(a) he shall not be liable to any penalty or forfeiture for non-residence, and

- (b) the bishop may for special reasons permit him to reside in or occupy such parsonage house or some part thereof ;
- (iii) subject to any direction to the contrary given by the bishop, he shall not receive any part of the income of the benefice while he remains resident within a distance of ten miles from the parish or other principal church of the parish or other area in which he had the cure of souls.

18.—(1) A bishop who has appointed a curate under this Measure to discharge the duties of any benefice may require such curate to reside in the parsonage house belonging to the benefice, and may assign to him the use of such parsonage house, together with the offices, gardens and appurtenances thereto belonging or any part or parts thereof, without payment of any rent.

Occupation of
parsonage
house by
curate.

(2) A curate residing in the parsonage house of a benefice under the provisions of this section shall be liable to pay the rates payable in respect of such parsonage house and such part of the assessments in respect thereof under the Ecclesiastical Dilapidations Measures, 1923 to 1929, as the Diocesan Dilapidations Board may decide to be reasonable, and the sequestrators appointed during any inhibition under this Measure shall have power to deduct from the stipend of such curate any payments for which he shall be liable under this subsection.

(3) The bishop shall have power in any case in which possession of the premises assigned to a curate under the provisions of this section is not given up to him, and until such possession shall be given up, to direct that the profits of the benefice arising from the sequestration thereof under this Measure be applied, subject to the provisions hereof, as if the same arose under a sequestration for non-residence.

(4) A right of residence and any other right vested in a curate under the provisions of this section shall determine upon the determination of his curacy.

19. In any case in which an incumbent is inhibited under this Measure from discharging all or any of the duties attaching to his benefice any right of patronage vested in him by virtue of his benefice shall while he is so inhibited vest in the patron of his benefice, or if he be himself the patron, in the archbishop of the province in which his benefice is situate.

Rights of
patronage.

20. The bishop shall have power to rescind any appointment of a curate or inhibition under this Measure, but shall not determine the appointment of any curate under this Measure except after such notice as shall be specified in the licence granted him by the bishop.

Power to
determine
appointment
of curates and
inhibitions.

PART III.

SUPPLEMENTARY PROVISIONS.

- Notices.** 21. Any notice or other document required to be sent or given under this Measure shall be deemed to have been duly sent or given if sent through the post in a prepaid registered letter addressed in the case of an incumbent to the parish or place whereof he is incumbent.
- Bishop as patron.** 22. The bishop may act as bishop for the purposes of this Measure in relation to the incumbent of a benefice of which the bishop is patron.
- Application of** 23. A person appointed by the bishop to act as promoter
26 Geo. 5. & under this Measure shall be deemed to be a person acting in
1 Edw. 8. the bishop's stead within the meaning and for the purposes
No. 5. of section nine of the Ecclesiastical Commissioners Measure, 1936, and proceedings under this Measure before a Special Court or on appeal shall be deemed to be legal proceedings within the meaning and for the purposes of such section.
- Short title.** 24. This Measure may be cited as the Incumbents (Discipline) Measure, 1947.
- Extent.** 25. This Measure shall extend to the whole of the Provinces of Canterbury and York except the Channel Islands and the Isle of Man, but may at any time before the expiration of two years from the date declared under section one of the Emergency Legislation Measure, 1944, to be the date on which the emergency that was the occasion of the passing of the Clergy (National Emergency Precautions) Measure, 1939, came to an end be applied to the Channel Islands, or either of them, as defined
8 & 9 Geo. 6. No. 1. in the Channel Islands (Church Legislation) Measure, 1931,
2 & 3 Geo. 6. No. 3. in accordance with the procedure set out in the schedule to that Measure.
21 & 22 Geo. 5. No. 4.
- Commence-ment.** 26.—(1) Subject to the provisions of this section, this Measure shall come into force on the appointed day which shall be such day as the Archbishops of Canterbury and York shall jointly determine.
(2) The determination by the Archbishops of Canterbury and York of the appointed day shall be notified in the London Gazette.
(3) The provisions of this Measure relating to the constitution of a Rule Committee shall come into force on the passing of the Measure.
- Repeal.** 27. Parts I and III of the Benefices (Ecclesiastical Duties)
16 & 17 Geo. 5. Measure, 1926, are hereby repealed.
No. 8.

SCHEDULE.

Section 7.

CONSTITUTION AND PROCEDURE OF SPECIAL COURTS.

1. A Special Court shall consist of five persons of whom one shall be the person holding the office of judge of the Consistory Court of the diocese who shall be the President of the Court ; but if he be unwilling or unable to act he may nominate to the bishop a barrister of not less than ten years standing and the person so nominated shall then be the President of the Court. Provided that the President of the Court shall constitute a Special Court when sitting alone to deal with interlocutory applications.

2. Of the other four persons two shall be clerks in Holy Orders chosen by rota from a panel of not less than six clerks in Holy Orders elected by the clerical members of the diocesan conference in the manner provided by paragraph four of this Schedule, provided that no member or reserve member of the Ministerial Committee shall be eligible to serve on this panel.

3. The remaining two persons shall be lay persons chosen by rota from a panel of not less than six lay persons elected by the lay members of the diocesan conference in the manner provided by paragraph four of this Schedule.

4. When it is proposed to elect a clerk or lay person to either panel the secretary of the diocesan conference shall send a notice to the clerical or lay members of the conference (as the case may be) inviting nominations which must reach him not later than fourteen days from the date of posting of such notice after which a voting paper setting out the names of the persons nominated shall be sent to such members by the secretary of the conference returnable to him not later than fourteen days from the date of the posting of such voting papers.

5. Persons elected to serve on either panel shall hold office for five years and shall be eligible for re-election.

6. Subject to rules made under section fourteen of this Measure it shall be the duty of the president to conduct the proceedings of a Special Court in accordance so far as may be with the practice of the High Court of Justice.